

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FORMUKLEEN, INC.,

Complainant

v.

TOP SHIPPING SYSTEMS, CORP.,

Respondent.

**RESPONDENT’S OPPOSITION TO COMPLAINANT’S MOTION TO STAY THE
AUGUST 25, 2026 OPENING BRIEF DEADLINE AND FURTHER MERITS BRIEFING**

Respondent Top Shipping Systems, Corp. (“TSS” or “Respondent”), appearing pro se, respectfully opposes Complainant FormuKleen, Inc.’s (“Complainant”) Motion to Stay the August 25, 2026 Opening Brief Deadline and Further Merits Briefing.

Complainant has not established good cause to stay the merits schedule.

I. THE PENDING MOTIONS DO NOT REQUIRE A STAY

Your Honor expressly directed merits briefing to proceed. (*July 27 Order at 6*).

Complainant acknowledges that certification of an interlocutory appeal does not itself stay the proceeding under 46 C.F.R. § 502.221(d). Complainant’s decision to seek reconsideration and interlocutory review therefore does not, by itself, provide a basis to suspend the existing merits schedule.

**II. COMPLAINANT’S SUBSEQUENT MOTION PRACTICE DOES NOT JUSTIFY
CHANGING THE AGREED BRIEFING SCHEDULE**

The existing merits briefing schedule was established with the participation and agreement of both parties. In the June 12 Order, Your Honor expressly noted that “the parties essentially agreed to a schedule” and entered the agreed-upon schedule, including the August 25, 2026 deadline for Complainant’s opening merits brief. (*June 12 Order at 1–2*).

Complainant was therefore aware of the August 25 deadline and participated in establishing that schedule before choosing to pursue reconsideration and interlocutory review. Its subsequent decision to file additional motions does not, by itself, establish good cause to alter the agreed merits schedule. Your Honor has already recognized the substantial length of these proceedings. In the July 27 Order, Your Honor observed that, despite this being a straightforward case, discovery had been ongoing for over a year, in part because of Complainant’s lack of diligence.

(*July 27 Order at 1–2*). Complainant now relies on the fifteen-day response period provided by 46 C.F.R. § 502.221(c), asserting that Respondent’s response period could extend through August 24, 2026, leaving “at most, one day” before Complainant’s August 25 opening-brief deadline. Respondent, however, filed its opposition to Complainant’s Combined Motion on August 17, 2026, before expiration of that fifteen-day period. The timing concern identified by Complainant does not exist as presented in its Motion to Stay. Complainant’s decision to pursue additional motion practice, despite the existing August 25 deadline, does not establish good cause to suspend the merits schedule previously agreed upon by the parties and entered by Your Honor.

The existing schedule should remain in place.

III. A STAY WOULD DELAY RATHER THAN ADVANCE THIS PROCEEDING

Complainant argues that a stay would preserve the status quo and avoid potentially duplicative briefing. But the requested stay would halt all merits briefing for an uncertain period while Complainant pursues reconsideration and potentially an interlocutory appeal. Complainant further requests that, if leave to appeal is granted, the stay remain in effect through the Commission’s disposition of the appeal and that a new merits briefing schedule be entered thereafter.

Thus, the requested relief is not merely a brief adjustment to the August 25 deadline. It would suspend the existing merits schedule for an indeterminate period despite Your Honor’s express direction that merits briefing proceed. (*July 27 Order at 6*). The proceeding should move forward under the schedule already established.

CONCLUSION

Complainant has not established good cause to suspend the existing merits schedule. Its requests for reconsideration and interlocutory review do not themselves stay the proceeding, and the timing resulting from Complainant’s subsequent motion practice does not justify further delay.

Accordingly, Respondent respectfully requests that Your Honor **DENY** Complainant’s Motion to Stay the August 25, 2026 Opening Brief Deadline and Further Merits Briefing and maintain the existing merits briefing schedule.

Respectfully Submitted,

TOP SHIPPING SYSTEMS CORP

Ricky Villena
Vice President, pro se

CERTIFICATE OF SERVICE

I hereby certify that on August 17th, 2026, I have served the foregoing to all parties of record in this proceeding via electronic mail.

By:

TOP SHIPPING SYSTEMS CORP

Ricky Villena

Vice President, pro se